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1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. ***The clerk will NOT contact you.*** Remote appearances by video or telephone can be made utilizing the **Zoom** platform, **effective January 2, 2024**:

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - ***Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.***
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXpFQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkxwckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CHRISTIAN ZAPPATO,

Petitioner

VS.

PHUONG NGUYEN,

Respondent

) Case Number: FPT-21-377886

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER CHANGE OF VISITATION
(PARENTING TIME), DECISION MAKING AUTHORITY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Christian Zappato (Father) and Respondent, Phuong Nguyen (Mother).
The minor child subject to this proceeding is Isaac Zappato (DOB: 10/22/20).
- 2) On March 30, 2026, Mother filed a Request for Order seeking a modification of visitation
(Parenting Time) and Decision-Making Authority orders.
- 3) On May 4, 2026, Father filed a Responsive Declaration to Mother's Request for Order, which has
been read and considered by the Court.
- 4) On May 12, 2026, Mother filed a Reply to Father's Responsive Declaration, which has been read
and considered by the Court.
- 5) On May 18, 2026, the Court held a "Readiness" hearing and referred the parties to FCS
Mediation on June 5, 2026 and set a return hearing for June 30, 2026.
- 6) The parties attended FCS Mediation on June 5, 2026, and were unable to reach an agreement.

1 7) On June 17, 2026, Father filed a supplemental declaration, which has been read and considered
2 by the Court.

3 **B. Findings and Order**

4 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
5 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
6 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
7 child is the United States.

8 2) Mother's requests contained within her Request for Order filed on March 30, 2026, are all
9 DENIED, with two exceptions.

10 a. Mother's request that the parties shall use a licensed barber for the minor child's haircuts
11 is GRANTED.

12 b. Mother's request that the parties shall comply with California Vehicle Code regarding the
13 transportation of the minor child is also GRANTED. Both parties shall provide
14 transportation for the minor child in full compliance with California Traffic laws.

15 3) Father's request for modification of the visitation schedule is GRANTED. Commencing June 30,
16 2026, the parenting plan shall be modified as follows:

17 a. A rotating 2/2/3 schedule shall be implemented forthwith.

18 b. Week 1: Father shall have care and custody of the minor child on Monday-Tuesday;
19 Mother shall have care and custody of the minor child Wednesday-Thursday; Father shall
20 have care and custody of the minor child Friday-Sunday.

21 c. Week 2: Mother shall have care and custody of the minor child on Monday-Tuesday;
22 Father shall have care and custody of the minor child Wednesday-Thursday; Mother shall
23 have care and custody of the minor child Friday-Sunday.

24 d. Week 3: Same as Week 1.

25 e. Week 4: Same as Week 2.

26 f. Week 5: Same as Week 1.

27 g. Exchange days/time shall occur on: Tuesdays, Thursdays and Sundays at 6:00 p.m.
28 Receiving parent to pick up the minor child from the other parent's home.
29

- 1 4) Both parents are ordered to take the minor child to ALL of his currently scheduled therapies
2 (speech, ABA, OT, group sessions, and evaluations) on their respective parenting days. Failure
3 to ensure the minor child attends each of his scheduled therapies may result in a change to the
4 parenting schedule.
- 5 5) All prior orders, not in conflict with the orders made herein, shall remain in full force and effect.
- 6 6) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JEMAURIEA SEMAJ MARTIN,

Petitioner

VS.

DESTINY SHYLESE ONEAL,

Respondent

) Case Number: FPT-24-378450

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Jemaureia Semaj Martin (Father) and Respondent, Destiny Shylese O'Neal (Mother). They share one minor child named Josiah Jalil Amari O'Neal (DOB: 02/12/23).
- 2) On March 25, 2026, Mother filed a Request for Order seeking a modification of the existing child custody and visitation (i.e., parenting time) orders.
- 3) On May 11, 2026, the Court conducted a "Readiness" hearing and referred the parties to FCS Mediation to occur on June 22, 2026 and set a return hearing for June 30, 2026 at 9:00 a.m., in Department 403.
- 4) As of June 26, 2026, Father has not filed a Responsive Declaration.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

1 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
2 child(ren) is the United States.

3 2) Mother's unopposed motion seeking sole legal and sole physical custody of the minor child is
4 GRANTED. Effective immediately, Mother shall have sole legal and sole physical custody of
5 Josiah Jalil Amari O'Neal born 02/12/23.

6 3) Father's visitation is hereby suspended, until further order of the Court. Should Father wish to
7 have his parenting time reinstated, he shall file a Request for Order with this Court explaining to
8 this Court why it is now in the child's best interest to have visitation reinstated.

9 4) All prior orders, not in conflict with the orders made herein, shall remain in full force and effect.

10 5) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

WILLIAM D ROSS,

Petitioner

VS.

STEPHEN R CROW,

Respondent

) Case Number: FDI-20-794096

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: PROPERTY CONTROL, AWARD OF REAL PROPERTY TO
PETITIONER, BUYOUT, STAY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner William D. Ross and Respondent Stephen R. Crow.
- 2) On 1/8/26, the Court issued an order regarding the property located at 779 Waller Street, San Francisco (Waller Street property). This order details the extensive rulings the Court made concerning this property dated back to a Statement of Decision filed 5/11/23, which orders the property be listed for sale by 7/15/23. Of note is this Court's appointment of an elisor to sign the listing agreement on behalf of Petitioner. See Findings and Order After Hearing (FOAH) filed 1/23/26.
- 3) On 3/6/26, Petitioner filed a Request for Order seeking the Court's permission to "pursue assumption of the existing mortgage loan" on the Waller Street property. Petitioner states, "Petitioner is seeking to assume the existing loan and buy out Respondent's interest in the property. Petitioner has communicated with the lender regarding this option and understands that the loan may be assumed subject to lender approval." Petitioner requests the Court permit

1 reasonable time for lender evaluation and completion of the assumption process before the forced
2 sale of the Waller Street property. The matter was set for hearing on 5/12/26.

- 3 4) On 3/10/26, Petitioner submitted an ex parte application seeking temporary emergency orders as
4 follows: (a) the status quo regarding the Waller Street property be maintained; (b) activation of
5 any listing, marketing, showing, or sale of the property temporarily stayed; (c) any requirement
6 that Petitioner vacate the property temporarily stayed; (d) these temporary orders remain in effect
7 until the 5/12/26 hearing (on Petitioner's Request for Order filed 3/6/26). On 3/10/26, the Court
8 denied Petitioner's request for temporary emergency orders pending hearing set for 4/14/26.
- 9 5) On 4/10/26, Respondent filed a Request for Order seeking: (a) exclusive use and possession of
10 the Waller Street property; (b) an order requiring Petitioner to pay all utility costs incurred from
11 June 2022 until the date Respondent takes possession of the property; (c) an order for Petitioner
12 to continue to pay the carrying costs on the property; and (d) authorization to open a blocked
13 account with Redwood Credit Union for the purpose of depositing the net proceeds from the sale
14 of the property into this account. Respondent asserts that Petitioner's occupancy of the Waller
15 Street property has interfered with the sale process ordered by the Court as he has prohibited the
16 real estate agent from entering. Respondent states he does not intend to reside in the property, but
17 rather seeks exclusive use, possession, and control to ensure the realtor, repair persons, and
18 potential buyers will be able to access the property without delay. The matter was set for hearing
19 on 6/4/26.
- 20 6) At the prior 4/14/26 hearing, the Court denied Petitioner's requests set forth in his 3/10/26 ex
21 parte application and reserved jurisdiction over Respondent's request for \$1,612 in Family Code
22 section 271 sanctions. See FOAH filed 5/1/26.
- 23 7) On 4/17/26, Respondent submitted an ex parte application seeking advancement of the 6/4/26
24 hearing to 5/12/26 based on judicial economy. Respondent simultaneously filed a Request to
25 Reschedule Hearing.
- 26 8) On 4/20/26, the Court issued an Order on Request to Reschedule advancing the 6/4/26 hearing to
27 5/12/26 against Petitioner's objection.
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1 9) On 4/21/26, Petitioner filed a Supplemental Declaration asserting that the Court needs to order a
2 complete financial accounting before it can proceed with enforcement of the orders forcing the
3 sale of the Waller Street property as reimbursements and offsets need to be determined.

4 10) On 4/30/26, Respondent filed a Responsive Declaration in opposition to Petitioner's request to
5 assume a loan to buyout Respondent's interest in the Waller Street property. Respondent asserts
6 that Petitioner's intention is only to delay the sale and reiterates his request for an order for
7 exclusive use, possession, and control of the property to effectuate the sale; Respondent states, "I
8 intend to seek sanctions against Petitioner in the amount well over \$80,000 for fees incurred due
9 to his failure to follow this Court's order which caused me to incur fees to file repeated motions
10 to enforce the terms of the August 4, 2024 Judgment and subsequent orders."

11 11) On 5/5/26, Petitioner filed a Responsive Declaration asserting that he does not consent to
12 vacating the Waller Street property and there is no practical reason requiring that he vacate the
13 property because he is cooperating with the sale process. Petitioner opposes any order requiring
14 him to pay utility or carrying costs on the property and requests that Respondent be ordered to
15 pay such costs. It is Petitioner's position that the property is not ready for immediate sale.

16 12) On 5/5/26, Petitioner filed a Supplemental Declaration reiterating his request regarding a
17 "proposed loan assumption and buyout alternative" for the Waller Street property.

18 13) At the prior 5/12/26 hearing, the Court issued the following orders:

19 a. Petitioner's request for an opportunity to pursue assumption of the existing mortgage loan
20 on the Waller Street property is DENIED. To date, Petitioner presented no documentary
21 evidence demonstrating his ability to assume the loan or buy out Respondent's interest in
22 the property. In the Court's view, it is clear that Petitioner intends to delay the sale of the
23 Waller Street property for as long as he possibly can.

24 b. Based on the foregoing, Respondent's request for exclusive use and possession of the
25 Waller Street property is GRANTED effective 6/12/26. The Court finds good cause to
26 grant such a request as Petitioner was previously ordered to vacate the residence and has
27 refused to comply with orders compelling the sale of the property since 2023. The Court
28 does not see a path in which Petitioner remains living in the Waller Street property and
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1 the sale of the property is completed. Respondent may submit an ex parte application for
2 a Writ of Execution to effectuate this order if necessary.

3 c. The Court reserves jurisdiction over Respondent's request for an order requiring
4 Petitioner to pay all utility costs incurred from June 2022 until the date Respondent takes
5 possession of the property.

6 d. Respondent's request that Petitioner be ordered to continue paying the carrying costs on
7 the property is DENIED.

8 e. Effective 6/12/26, Respondent shall be temporarily responsible for utility payments and
9 carrying costs associated with the property subject to reallocation.

10 f. Respondent's request for authorization to open a blocked account with Redwood Credit
11 Union for the purpose of depositing the net proceed from the sale of the Waller Street
12 property into this account is GRANTED. The proceeds from the sale of the property shall
13 remain blocked until further order of the Court (i.e., neither party is permitted to access
14 the funds unless and until a Court order otherwise).

15 14) On 5/12/26, Petitioner filed a Request for Order asking the Court to award him the Waller Street
16 property pending completion of the loan assumption and buyout process. Petitioner asks the Court
17 to stay any orders related to the transfer of possession of the Waller Street property to
18 Respondent. The matter was set for hearing on 6/30/26.

19 15) On 5/15/26, Petitioner filed a supplemental declaration wherein it appears he objects to the
20 Court's 5/12/26 orders and requests procedural clarification.

21 16) On 6/18/26, the Court granted Respondent's ex parte Request for Order seeking a Writ of
22 Possession of the Waller Street Property.

23 17) On 6/23/26, Petitioner filed "Emergency Request to Stay, Recall, or Modify Writ of Possession
24 Pending Meaningful Review and Order Directing Loan Assumption/ Buyout Process." Petitioner
25 requests the Court stay, recall, or modify the Writ of Possession and other orders related to
26 Petitioner remaining in the home pending a buyout of Respondent's interest. Petitioner also
27 requests the Court clarify which FOAH from the 5/12/26 hearing is the operative order.

28 18) On 6/23/26, Petitioner filed a Supplemental Declaration reiterating his objection to vacating the
29 Waller Street property. Petitioner requests "a meaningful opportunity to present lender

1 communications, financial information, documentation, and a practical plan for loan assumption
2 and buyout.”

3 19) On 6/23/26, Respondent filed “Respondent’s Objection to the Court’s Consideration of
4 Petitioner’s Request for Order Set for Hearing on June 30, 2026.” Respondent asserts Petitioner’s
5 Request for Order filed 5/12/26 was not properly served.

6 **B. Findings and Order**

7 1) The Court acknowledges that there are two FOAH from the 5/12/26 hearing in the Court’s file:
8 one filed dated 5/14/26, which counsel for Respondent prepared, and one file dated 6/3/26, which
9 the Court prepared. This is the Court’s mistake as counsel for Respondent was ordered to prepare
10 the FOAH. The Court will correct the file; accordingly, however, the Court’s order as set forth
11 above remains in full force and effect.

12 2) Petitioner’s Request for Order filed 5/12/26 is DENIED on both procedural and substantive
13 grounds.

14 3) Petitioner’s Request for Order is procedurally defective because it was not properly served on
15 Respondent. Respondent attached documentary evidence that Petitioner was noticed of defective
16 service by email on 6/1/26.

17 4) Further, Petitioner filed 3 additional supplemental declarations which contain new or different
18 requests and the rules do not provide for the filing of such pleadings.

19 5) Nevertheless, in proceeding to the merits of Petitioner’s Request for Order filed 5/12/26, the
20 Court finds Petitioner’s requests are MOOT given that the Court denied Petitioner’s request for
21 an opportunity to pursue assumption of the existing mortgage loan on the Waller Street property
22 at the prior 5/12/26 hearing.

23 6) The Court stated, in pertinent part: “Petitioner’s request for an opportunity to pursue assumption
24 of the existing mortgage loan on the Waller Street property is DENIED. To date, Petitioner
25 presented no documentary evidence demonstrating his ability to assume the loan or buy out
26 Respondent’s interest in the property. In the Court’s view, it is clear that Petitioner intends to
27 delay the sale of the Waller Street property for as long as he possibly can. Based on the foregoing,
28 Respondent’s request for exclusive use and possession of the Waller Street property is
29 GRANTED effective 6/12/26. The Court finds good cause to grant such a request as Petitioner

1 was previously ordered to vacate the residence and has refused to comply with orders compelling
2 the sale of the property since 2023. The Court does not see a path in which Petitioner remains
3 living in the Waller Street property and the sale of the property is completed. Respondent may
4 submit an ex parte application for a Writ of Execution to effectuate this order if necessary.”

5 7) Thereafter, the Court granted Respondent’s request for a Writ of Possession of the Waller Street
6 Property on 6/18/26.

7 8) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MIRANDA DEVLIN,

Petitioner

VS.

TAD DEVLIN,

Respondent

) Case Number: FDI-21-794941

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
CHILD SUPPORT, FAMILY COURT 3044 PRESUMPTION; REQUEST FOR ORDER FOR
CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME), CHILD SUPPORT, FAMILY
COURT 3044 PRESUMPTION

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Miranda Devlin (Mother) and Respondent Tad Devlin (Father). They share two minor children: Chloe (DOB: 4/25/12) and Paige (DOB: 4/15/26).
- 2) Mother had parenting time with the minor children every Tuesday after school until Wednesday morning drop off at school and every other weekend from Friday after school until Sunday at 5:00 PM. See Findings and Order After Hearing filed 11/21/24.
- 3) On 11/27/24, a Domestic Violence Restraining Order (DVRO) was granted after a 6-day trial. Father is the protected party, and Mother is the restrained party. The minor children are not listed as protected parties. Father was awarded sole legal and sole physical custody.

- 1 4) On 10/8/25, Mother filed a Request for Order seeking: (a) a finding that Mother overcame the
2 Family Code section 3044 presumption against joint custody; (b) joint legal and physical custody;
3 (c) modification of the parenting time orders to increase her time an extra day during the week
4 and one extra night every other weekend; (c) modification of the 2/11/25 child support orders to
5 guideline child support. Mother attached a proposed holiday schedule to her Request for Order.
6 5) On 10/8/25, Mother filed an Income and Expense Declaration.
7 6) On 11/17/25, the parties appeared for Readiness Hearing. The matter was scheduled for
8 mediation with Family Court Services on 1/6/26 and regular hearing in Dept. 403 on 2/3/26.
9 7) On 11/5/25, Father filed a Responsive Declaration in opposition to Mother's Request for Order
10 asking the Court to deny Mother's requested relief. However, Father states that he is agreeable to
11 Mother having the minor children an extra weeknight (Tuesday and Wednesday night until
12 Thursday morning school drop-off) on weekends that Mother does not have parenting time.
13 8) On 11/5/25, Father filed an Income and Expense Declaration.
14 9) On 11/12/25, Mother filed a Reply Declaration.
15 10) On 1/6/26, the parties attended mediation but did not reach an agreement.
16 a. Mother requests:
17 i. Parenting time every Tuesday afterschool until Thursday morning drop-off at
18 school;
19 ii. Parenting time every other weekend Friday afterschool through Monday morning
20 drop off at school; and
21 iii. A shared holiday schedule with holiday exchanges to take place at 5 PM.
22 b. Father requests:
23 i. The current parenting schedule to remain in place (i.e., Mother to have the
24 children every Tuesday afterschool until Wednesday morning drop off at school
25 and every other weekend Friday afterschool until Sunday at 5 PM).
26 ii. No shared holiday schedule at this time.
27 11) On 1/27/26, Mother filed a supplemental declaration in support of her position.
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12) On 2/3/26, the parties appeared at hearing, and Father requested a long-cause (i.e., evidentiary) hearing. The Court did not adopt any portion of its Tentative Ruling issued for the 2/3/26 hearing and set all pending issues for long-cause hearing on 5/21/26.

13) On 5/21/26, the parties appeared at the long-cause hearing and the Court determined Mother rebutted the Family Code section 3044 presumption against joint custody. Therefore, the Court granted Mother's request for joint legal custody. The Court increased Mother's parenting time with the minor children from Tuesdays pick-up afterschool to Thursday drop off at school with alternate weekends (which appears to be a 2/2/5 schedule). The Court ordered the parties to attend FCS Mediation on 6/18/26. The Court made various other orders, which have yet to be memorialized in a Findings and Order After Hearing. The Court continued the matter to 6/30/26 for issues related to child support, summer, and vacation schedule, and make-up time.

14) On 6/18/26, the parties attended FCS Mediation and were able to reach a partial agreement.

B. Findings and Order

1) Child Custody and Visitation: This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) The Court confirms the orders issued at long-cause hearing regarding custody. The parties shall share joint legal and joint physical custody of the minor children.

3) The Court confirms the orders issued at long-cause hearing regarding parenting time. The Court's 2/2/5 parenting time schedule is confirmed: Father has the minor children on Mondays and Tuesdays, Mother has the minor children on Wednesdays and Thursdays, and the parties alternate weekends.

4) **The parties are ordered to appear** regarding the outstanding child custody and vitiation issues.

5) Financial Matters: Mother's request for modification of child support is GRANTED as a modification of parenting time is a material change in circumstances.

6) As such, effective 5/21/26 (i.e., when the Court awarded Mother approximately a 50% timeshare after a long-cause hearing), and in accordance with the XSpouse report attached hereto and

1 incorporated herein, Father owes Mother \$3,315 in guideline monthly child support and \$3,863 in
2 guideline temporary monthly spousal support for a total monthly support payment of \$7,178.

3 7) All support payments are due and payable by the 1st of every month commencing 7/1/26.

4 8) Father owes Mother \$9,493.38 in support arrears for the period of 5/21/26 – 6/30/26 (\$2,315.48
5 for May + \$7,178 for June). Father shall pay this balance in full by 7/15/26.

6 9) The XSpouse reports are based on the following findings:

7 a. Per Mother's Income and Expense Declaration filed 10/8/25:

8 i. Mother's average monthly income is \$5,372.

9 ii. Mother pays \$66 in monthly health insurance premiums.

10 iii. Mother pays \$200 in necessary job-related expenses.

11 b. Per Father's Income and Expense Declaration filed 11/5/25:

12 i. Father's average monthly income is \$30,000.

13 ii. Father makes \$1,440 monthly 401(k) contributions.

14 iii. Father receives \$285 in average monthly dividends.

15 iv. Father receives \$2,218 in average monthly rental property income.

16 v. Father pays \$29.94 in monthly health insurance premiums.

17 vi. Father pays \$81 in necessary job-related expenses.

18 10) As and for additional child support, Father shall pay to Mother a percentage of any and all
19 income, compensation, or remuneration earned above Father's \$30,000 in base gross monthly
20 income, as set forth in the Smith/Ostler bonus report attached to the XSpouse report. Additional
21 support shall be paid within 10 days of receipt. Father shall provide at the same time as payment
22 documentation showing the excess gross income received and the calculation providing the basis
23 for Smith/Ostler support owed.

24 11) All prior orders not in conflict with this order shall remain in full force and effect, including, but
25 not limited to the Court's 2/11/25 orders regarding a spousal support deduction, child-support
26 add-ons, and private school tuition.
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Xspouse 2026-1-CA				Monthly Figures			Monthly Figures		
2026				2026			Cash Flow		
Fixed Shares				GUIDELINE			Guideline Proposed		
Number of children	Percent	Father	Mother	Nets (adjusted)			Combined net spendable	25206	25392
time with NCP Filing status	HH/MLA SINGLE	0.00%	49.00%	Support			Percent change	0%	1%
Number of exemptions	2	1		Proposed			Father		
Wages and salary	30000	5372		Tactic 9			Payment cost/benefit	-7178	-7084
Self employed income	0	0	Father	21152			Net spendable income	13974	14067
Other taxable income	2503	0	Mother	4055			Change from guideline	0	93
TANF CS received	0	0	Total	25207			% of combined spendable	55%	55%
Other nontaxable income	0	0					% of saving over guideline	0%	50%
New spouse income	0	0	Addons	0			Total taxes	11351	11378
Employee 401-k contribution	1440	0	Guideln CS	3315			Dep. exemption value	0	0
Adjustments to income	0	0	S.Clara SS	3863			# withholding allowances	0	0
SS paid prev marriage	0	0	Total	7178			Net wage paycheck	17029	17029
CS paid prev marriage	0	0					Mother		
Health insurance	0	66					Payment cost/benefit	7178	7270
Other medical expenses	0	0					Net spendable income	11232	11324
Property tax expenses	0	0	CS	3260			Change from guideline	0	92
Ded interest expense	0	0	SS	3798			% of combined spendable	45%	45%
Contribution deduction	0	0	Total	7058			% of saving over guideline	0%	50%
Misc tax deductions	0	0	Saving	185			Total taxes	1051	839
Qualified business income deduction	0	0	Releases	-1			Dep. exemption value	0	0
Required union dues	0	0					# withholding allowances	0	0
Mandatory retirement	0	0					Net wage paycheck	4096	4096
Hardship deduction	0	0							
Other GDL deductions	0	200							
Child care expenses	0	0							

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: **ON**

Per Child Information

DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	51 - 49	0	0	0 Father	3,315 Father	3,315 Father
0000-00-00	51 - 49	0	0	0 Father	1,243 Father	1,243 Father
0000-00-00	51 - 49	0	0	0 Father	2,072 Father	2,072 Father

OFF

Bonus amounts from: 0 to: 200000 Step: 2500 (0 = default steps)

Father's Bonus	Additional Cost to Father				Total CS	Total SS (adjusted)
	Child Support % of bonus	\$	Spousal Support % of bonus	\$		
0	0.00	0	0.00	0	0	0
2500	7.54	189	12.92	323	3504	4186
5000	7.51	375	12.95	647	3690	4510
7500	7.47	560	12.98	973	3875	4836
10000	7.44	744	13.00	1300	4059	5163
12500	7.41	927	13.03	1628	4242	5491
15000	7.39	1108	13.05	1957	4423	5820
17500	7.36	1288	13.07	2287	4603	6150
20000	7.34	1468	13.09	2618	4783	6481
22500	7.32	1646	13.11	2949	4961	6812
25000	7.30	1824	13.12	3281	5139	7144
27500	7.28	2001	13.14	3613	5316	7476
30000	7.26	2178	13.15	3946	5493	7809
32500	7.24	2354	13.17	4280	5669	8142
35000	7.23	2529	13.18	4613	5844	8476
37500	7.21	2704	13.19	4947	6019	8810
40000	7.20	2879	13.20	5282	6194	9144
42500	7.18	3053	13.21	5616	6368	9479
45000	7.17	3227	13.22	5951	6542	9814
47500	7.16	3400	13.23	6286	6715	10149
50000	7.15	3573	13.24	6621	6888	10484
52500	7.14	3746	13.25	6957	7061	10820
55000	7.12	3919	13.26	7293	7234	11155
57500	7.11	4091	13.27	7629	7406	11491
60000	7.10	4263	13.27	7965	7578	11827
62500	7.10	4434	13.28	8301	7750	12164
65000	7.09	4606	13.29	8637	7921	12500
67500	7.08	4777	13.29	8974	8092	12836
70000	7.07	4948	13.30	9310	8263	13173
72500	7.06	5119	13.31	9647	8434	13510
75000	7.05	5290	13.31	9984	8605	13846
77500	7.05	5461	13.32	10320	8776	14183
80000	7.04	5631	13.32	10657	8946	14520
82500	7.03	5801	13.33	10994	9116	14857
85000	7.03	5972	13.33	11331	9287	15194
87500	7.02	6142	13.34	11668	9457	15531
90000	7.01	6311	13.34	12005	9626	15868
92500	7.01	6481	13.34	12343	9796	16205
95000	7.00	6651	13.35	12680	9966	16543
97500	7.00	6820	13.35	13017	10135	16880
100000	6.99	6990	13.35	13354	10305	17217

Cost is an increase in support paid or a decrease in support received by this spouse

R = recipient of support

Bonus income may reverse direction of CS and/or SS

OFF

Bonus amounts from: 0 to: 200000 Step: 2500 (0 = default steps)

Father's Bonus	Additional Cost to Father				Total CS	Total SS (adjusted)
	Child Support % of bonus	\$	Spousal Support % of bonus	\$		
100000	6.99	6990	13.35	13354	10305	17217
102500	6.98	7159	13.36	13692	10474	17554
105000	6.98	7328	13.36	14029	10643	17892
107500	6.97	7497	13.36	14366	10812	18229
110000	6.97	7666	13.37	14704	10981	18567
112500	6.96	7835	13.37	15041	11150	18904
115000	6.96	8004	13.37	15379	11319	19241
117500	6.96	8172	13.38	15716	11487	19579
120000	6.95	8341	13.38	16054	11656	19916
122500	6.95	8510	13.38	16391	11825	20254
125000	6.94	8678	13.38	16729	11993	20591
127500	6.94	8846	13.39	17066	12161	20929
130000	6.93	9015	13.39	17404	12330	21266
132500	6.93	9183	13.39	17741	12498	21604
135000	6.93	9351	13.39	18079	12666	21941
137500	6.92	9519	13.39	18416	12834	22279
140000	6.92	9687	13.40	18754	13002	22616
142500	6.92	9855	13.40	19091	13170	22954
145000	6.91	10023	13.40	19429	13338	23291
147500	6.91	10191	13.40	19766	13506	23629
150000	6.91	10359	13.40	20103	13674	23966
152500	6.90	10527	13.40	20441	13842	24304
155000	6.90	10694	13.41	20778	14009	24641
157500	6.90	10862	13.41	21116	14177	24979
160000	6.89	11030	13.41	21453	14345	25316
162500	6.89	11197	13.41	21791	14512	25653
165000	6.89	11365	13.41	22128	14680	25991
167500	6.88	11532	13.41	22465	14847	26328
170000	6.88	11699	13.41	22803	15014	26666
172500	6.88	11867	13.41	23140	15182	27003
175000	6.88	12034	13.42	23478	15349	27340
177500	6.87	12201	13.42	23815	15516	27678
180000	6.87	12369	13.42	24152	15684	28015
182500	6.87	12536	13.42	24490	15851	28352
185000	6.87	12703	13.42	24827	16018	28690
187500	6.86	12870	13.42	25164	16185	29027
190000	6.86	13037	13.42	25501	16352	29364
192500	6.86	13204	13.42	25839	16519	29701
195000	6.86	13371	13.42	26176	16686	30039
197500	6.85	13538	13.42	26513	16853	30376
200000	6.85	13705	13.43	26850	17020	30713

Cost is an increase in support paid or a decrease in support received by this spouse

R = recipient of support

Bonus income may reverse direction of CS and/or SS

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

UNIFIED FAMILY COURT

JULIA ELENA GARCES FRENCH,

Petitioner

VS.

CONOR B FRENCH,

Respondent

) Case Number: FDI-22-796674

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE CHANGE OF EDUCATIONAL DECISION-MAKING, SCHOOL
ENROLLMENT AND PARENTING PLAN

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner, Julia Elena Garces (Mother) and Respondent, Conor B. French (Father). They share two minor children named Edward Caleb French (04/06/20) and Christian Robert Garces French (03/19/22).
- 2) On March 13, 2026, Father filed a Request for Order seeking the following orders:
- 3) Educational Decision-Making Authority;
- 4) Alternative School-Specific Order;
- 5) Prospective Relief;
- 6) Financial Responsibility; and
- 7) Modification of Parenting Plan.

1 8) On May 6, 2026, Mother filed a Responsive Declaration, which has been read and considered by
2 the Court.

3 9) On May 12, 2026, the Court, on its own motion continued the May 21, 2026 hearing to June 30,
4 2026. FCS Mediation was set to occur on June 16, 2026 at 9:00 a.m.

5 10) On June 23, 2026, Father filed a Reply Declaration, which has been read and considered by the
6 Court.

7 **B. Findings and Order**

8 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
9 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
10 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
11 child(ren) is the United States.

12 2) **The parties are ordered to appear.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FRANK LEWIS FLORES,

Petitioner

VS.

PUREVSUREN BAAJUUDAI FLORES,

Respondent

) Case Number: FDI-24-800346

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: EXCLUSIVE OCCUPANCY

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Frank Lewis Flores (Husband) and Respondent Purevsuren Baajuudai Flores (Wife). There are no minor children subject to this proceeding.
- 2) On 10/01/24, Husband filed a Petition for Dissolution indicating the date of the marriage is 12/15/14 and the date of separation is 9/9/24 for a marriage of 9 years and 8 months. Husband asserts that the parties have a prenuptial agreement.
- 3) On 11/13/24, Wife filed a Response and Request for Dissolution indicating the date of the marriage is 12/15/14 and the date of separation is 11/04/24 for a marriage of 9 years and 11 months. Wife disputes the validity and enforceability of the prenuptial agreement.
- 4) On 03/23/26, Husband filed a Request for Order seeking exclusive occupancy of the residence located on 39 Princeton Street, San Francisco, CA 94134 (hereafter "the property"). Husband asserts the property is separate property according to the prenuptial agreement.

- 1 5) On 03/23/26, Husband filed an Income and Expense Declaration indicating that he earns
2 \$7,449.56 in gross monthly income, has \$5,347,265 in stocks and easily sellable assets, has
3 \$1,200,000 in real and personal property assets, and pays \$6,017 in total monthly expenses.
- 4 6) On 04/16/26, Husband filed a Proof of Service indicating that Wife was served on 03/26/26 by
5 personal service, which is timely service.
- 6 7) On 06/16/26, Wife filed a Responsive Declaration in opposition to Husband's Request for Order
7 wherein Wife asserts the prenuptial agreement was in English, there was no translator or
8 interpreter present at the time of signing, and that she did not understand most of the document or
9 its consequences. Wife indicates that her gross income for 2025 was \$3,396.92 per month. Wife
10 requests that the Court deny Husband's request for exclusive occupancy, until such a time that the
11 Court has made a ruling on the issues of spousal support and attorney's fees and has allowed
12 Wife enough time to find a new home. Wife requests the Court reserve jurisdiction to issue
13 sanctions on Husband.
- 14 8) On 06/16/26, Wife filed a Memorandum of Points and Authorities in opposition to Husband's
15 Request for Order asserting that Wife has resided in the property for approximately 14 years.
16 Further, Wife asserts that under Family Code section 753, a court is specifically foreclosed from
17 issuing an order excluding either spouse from the dwelling of the other spouse absent allegations
18 of domestic violence.
- 19 9) On 06/17/26, Wife filed a Proof of Service indicating that Husband was served with the
20 responsive pleadings on 06/16/26 by electronic service, which is timely service.
- 21 10) On 6/23/26, Husband filed a Reply Declaration reiterating his request. Husband refutes Wife's
22 position regarding the prenuptial agreement and believes Wife is intentionally causing delay.
23 Husband asserts his request is brought in good faith.
- 24 11) On 6/23/26, Husband filed a Reply Memorandum of Points and Authorities asserting the Court
25 has broad discretion regarding settlement of property rights under Family Code section 2010.

26 **B. Findings and Order**

- 27 1) Husband's Request for Order seeking exclusive occupancy of the residence located on 39
28 Princeton Street, San Francisco, CA 94134 is GRANTED.
- 29

- 2) The Court finds the plain language of the parties' prenuptial agreement clearly awards Husband the sole and exclusive use of the property pending dissolution given that it is undisputed that the property is his separate property.
- 3) Wife shall vacate the property by 9/30/26.
- 4) The Court declines to reserve jurisdiction over an award of sanctions against Husband.
- 5) Counsel for Husband shall prepare the Findings and Order After Hearing.
- 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RUBY LIU,

Petitioner

VS.

LEANDRO COIMBRA RODRIGUES,

Respondent

) Case Number: FDI-24-800682

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER TERMINATING AND ISSUEE SANCTIONS AND PRECLUSION ORDER

TENTATIVE RULING

On the Court's own motion, Petitioner's Request for Order filed 5/8/26 is **continued to 7/2/26 at 9 AM in Dept. 403** to be heard on the same date as Respondent's Request for Order filed 5/18/26. **No appearances are required on 6/30/26.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ELIZABETH ABAUNZA,

Petitioner

VS.

HERMES ABAUNZA,

Respondent

) Case Number: FDI-25-801584

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REVIEW OF CHILD SUPPORT & PRIVATE SCHOOL PAYMENT (SEE STIP FILED 11/24/25)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Elizabeth Abaunza (Mother) and Respondent Hermes Abaunza (Father).
- 2) They share two minor children: Arianna and Leia.
- 3) On 11/21/25, the parties entered into a Stipulation and Order, which provides for a \$0 child support order (and waiver of guideline support owed to Mother), a reduction in Father's share of private school tuition to 30%, and a review hearing regarding child support and private school payment on 3/5/26.
- 4) On 3/2/26, the parties filed a Stipulation and Order to Continue Hearing; the review hearing was continued to 5/19/26.
- 5) On 3/2/26, Mother filed an Income and Expense Declaration.
- 6) At the prior 5/19/26 hearing, the parties jointly appeared and requested a continuance. The matter was continued to 6/30/26.

- 1 7) On 6/18/26, Mother filed a Supplemental Declaration requesting the Court maintain the \$0 child
2 support order, increase Father's share of private school tuition to 50%, order Father to reimburse
3 Mother \$765 (half of \$1,530) in school registration costs, and order a vocational evaluation for
4 Father.
- 5 8) On 6/18/26, Mother filed an updated Income and Expense Declaration.
- 6 9) On 6/23/26, Father filed a Supplemental Declaration seeking a child support order for \$649
7 payable by Mother to Father and a further reduction in Father's share of private school tuition to
8 \$0. Father attached a proposed XSpouse report. Father requests the Court deny Mother's request
9 he undergo a vocational evaluation as he is on disability for a work-related injury and the request
10 is not properly before the Court. Father states he was medically advised that he can return to work
11 as a BART Community Services Officer in a few months. Father states he believes the minor
12 children should be enrolled in public school.
- 13 10) On 6/26/26, Father filed "Document to Correct Typographical Error on Respondent's
14 Supplemental Declaration."

15 **B. Findings and Order**

- 16 1) The Court declines to modify the terms of the parties' Stipulation and Order regarding child
17 support and private school tuition at this time as the Court finds it would be premature to do so
18 for the following reasons: (a) it is undisputed that Father's medical and employment situation
19 remains uncertain; however, Father believes that he can return to work "in a few months;" (b) the
20 parties appear to disagree about whether the children should remain enrolled in their current
21 private school; and (c) Father seeks to increase his parenting timeshare in the fall.
- 22 2) Should either party wish to modify the child support order when these uncertainties are resolved,
23 they may file a new Request for Order.
- 24 3) Similarly, Mother's request for a vocational evaluation for Father is DENIED without prejudice.
- 25 4) Mother's request for Father to reimburse Mother \$765 (half of \$1,530) in school registration costs
26 is GRANTED, albeit in the amount of \$459 (i.e., 30% of \$1,530) pursuant to the parties'
27 agreement. Father shall pay Mother this balance in full by 7/31/26.
- 28 5) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 29

1 6) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ADRIAAN CORNELIUS BRAND,

Petitioner

VS.

HAKEEM OLATUNDE OSENI II,

Respondent

) Case Number: FDI-26-802632

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, SPOUSAL OR PARTNER
SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Adriaan Cornelius Brand and Respondent Hakeem Olatunde Oseni II.
- 2) On 3/2/26, Petitioner filed a Petition for Dissolution indicating the date of marriage is 9/20/18 and date of separation is 2/27/26 for a marriage of 7 years and 5 months.
- 3) On 3/3/26, Petitioner filed a Proof of Service of Summons indicating Respondent was served by personal service on 3/2/26.
- 4) Respondent did not file a Response and Request for Dissolution.
- 5) On 5/7/26, Petitioner filed an Income and Expense Declaration.
- 6) On 5/11/26, Petitioner filed an ex parte Request for Order seeking emergency orders for temporary monthly spousal support and attorney's fees and costs.
- 7) On 5/11/26, the Court denied Petitioner's request for emergency relief and set the matter for regular hearing on 6/30/26.

1 8) There is no Proof of Service on file indicating Petitioner's 5/11/26 Request for Order was served
2 on Respondent.

3 9) Respondent did not file a Responsive Declaration

4 **B. Findings and Order**

5 1) The Court finds that Petitioner's 5/11/26 Request for Order was not served at least 16 Court days
6 prior to the hearing date as required by Code of Civil Procedure section 1005(b).

7 2) As such, this matter is **continued to 8/25/26 at 9 AM in Dept. 403** for lack of service.

8 3) At least 16 Court days prior to the next hearing date, Petitioner shall file and serve on Respondent
9 the (a) 5/11/26 Request for Order, (b) Continuance Order contained herein, and (c) Tentative
10 Ruling Instructions using a service method authorized by the Code of Civil Procedure (i.e., a
11 person over the age of 18 shall mail to Respondent the (a) Request for Order, (b) Continuance
12 Order, and (c) Tentative Ruling Instructions, and then Petitioner shall file form FL-335 (Proof of
13 Service) with the Court confirming service was effectuated).

14 4) At least 9 Court days prior to the next hearing date, Respondent may file a Responsive
15 Declaration, though the Court notes Respondent has not filed a Response and Request for
16 Dissolution.

17 5) At least 5 Court days prior to the next hearing date, Petitioner may file and serve a Reply
18 Declaration.

19 6) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MARGUERITE BACON BRADLEY,

Petitioner

VS.

JORGE VARGAS GONZALEZ,

Respondent

) Case Number: FDV-25-818369

) Hearing Date: June 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF PETITIONER BRADLEYS REQUEST FOR ORDER FL300 CHANGE
OF VISITATION (PARENTING TIME), ATTORNEY FEES AND COSTS, CHANGE RALLY
LOCATION & ORDER FATHER TO COOPERATE WITH SERVICE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner, Marguerite Bacon Bradley (Mother) and Respondent, Jorge Vargas Gonzalez (Father). They share one minor child named Luisa Vargas Bradley (DOB: 05/24/24).
- 2) On March 30, 2026, Mother filed a Request for Order seeking a modification to the parenting time schedule, change of Rally location, and an order for Father to cooperate with service, and attorney fees. Mother also asked the Court for an order that electronic service be permitted.
- 3) On April 3, 2026, Mother filed a declaration in support of her Request for Order, which has been read and considered by the Court.
- 4) On April 21, 2026, Father filed a Responsive Declaration to Mother's Request for Order, which has been read and considered by the Court.

- 1 5) On April 28, 2026, Mother filed a “Reply Declaration of Petitioner Marguerite Bacon Bradley to
2 Respondent Jorge Vargas Gonzalez’s Responsive Declaration to Petitioner’s RFO,” which has
3 been read and considered by this Court.
- 4 6) On May 4, 2026, the Court held a “Readiness” hearing and granted Mother’s request to transfer
5 the supervised exchange from San Francisco Rally to San Mateo Rally. The Court did not
6 address any of the other issues contained within Mother’s March 30, 2026, Request for Order,
7 pending further hearing. The Court ordered both parents to attend FCS Mediation on June 12,
8 2026, and continued the matter for hearing on June 30, 2026.
- 9 7) On June 23, 2026, Father filed a “Supplemental Responsive Declaration in Opposition to
10 Petitioner’s Request for Orders,” which has been read and considered by the Court.

11 **B. Findings and Order**

- 12 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
13 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
14 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
15 child(ren) is the United States.
- 16 2) From review of the pleadings, it appears Mother has relocated the minor child to San Mateo
17 County. The Court notes that even though Mother has sole legal and sole physical custody, she
18 cannot unilaterally relocate the minor child, without Father’s permission or an order of the Court.
19 Given that Father’s Responsive Declaration did not raise any objection to Mother’s relocation of
20 the minor child, the Court will assume Father has given Mother consent to relocate with the
21 minor child to San Mateo County and will not disturb the parties’ agreement.
- 22 3) Mother’s request for a change in the Rally supervised exchange from San Francisco County to
23 San Mateo County is DENIED. The Court is aware it made an interim order at the “Readiness”
24 hearing conducted on May 4, 2026. However, the Court is vacating its orders for “supervised
25 exchanges.” All further exchanges will be conducted at a police station near each parent’s
26 respective homes. The receiving parent will pick up the minor child from the police station
27 closest to the other parent. Both parties shall coordinate the police station locations with their
28 respective attorneys.
- 29 4) Mother’s request to reduce Father’s parenting time is DENIED.

- 1 5) Mother's request for attorney fees is DENIED, as there is no disparity in access to funds and
2 Father does not have the present ability to pay his own fees and Mother's.
- 3 6) Mother's request for an order requiring Father to make himself reasonably available for and to
4 cooperate with service of process is DENIED. The Court does not have the authority to modify
5 the provisions contained within the Code of Civil Procedure relating to service of process.
- 6 7) Father's request for makeup time, for missed visits, is DENIED.
- 7 8) Father's request for a slight increase in his parenting time is GRANTED. Father's parenting
8 time, with the minor child shall be on the 1st, 3rd and 5th weekends of each month from Saturday
9 at 9:00 a.m., through Sunday at 6:00 p.m. In addition, Father shall have parenting time with the
10 minor child every Wednesday from 4:00 p.m. – 7:30 p.m. The Court DENIES Father's request to
11 institute a further "step up" plan at this time.
- 12 9) All prior orders, not in conflict with the orders herein, shall remain in full force and effect.
- 13 10) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 14 11) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
15 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
16 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
17 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
18 proposed order after hearing directly to the court. Failure to submit the order after hearing within
19 10 days may allow the other party to prepare a proposed order and submit it to the court in
20 accordance with CA Rules of Court, Rule 5.125(d).
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